

Here, the meet and confer efforts were inadequate. CCP § 431.41 requires that the parties meet and confer **via telephone, videoconferencing or in person** before the demurrer is filed. Counsel for moving Defendant declares that he sent a letter via email to Plaintiff's counsel outlining the alleged deficiencies in the Complaint, to which Plaintiff's counsel failed to respond. This is insufficient meet and confer.

Moving Defendant shall, at least 15 days before the continued hearing date, file a supplemental declaration stating the means by which the parties met and conferred, and identifying the remaining issues that the parties were unable to resolve.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG vs NORTH AMERICAN SAVINGS BANK, F.S.B.	MOTION TO VACATE JUDGMENT OF DISMISSAL ENTERED IN FAVOR OF NORTH AMERICAN SAVINGS BANK, F.S.B. AND FOR LEAVE TO FILE THE PROPOSED SECOND AMENDED COMPLAINT

Tentative Ruling:

DENY

Plaintiff alleges no ground for vacating the judgment. Plaintiff instead relies on proposed amendments to the complaint, but once judgment has been rendered, a plaintiff cannot amend her complaint unless the judgment is first vacated. Here, Plaintiff fails to show how the proposed amendments would cure the defects.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2602524	BERNIE'S MEATS LLC vs RINCON AMEZCUA	DEMURRER ON COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer with 30 days leave to amend.

Breach of Duty of Loyalty

Plaintiff fails to allege how Rincon Amezcua breached the duty during his employment. Plaintiff only alleges that La Fe was formed while Defendant was still employed by Plaintiff—he does not allege that Defendant actually formed or worked for La Fe during his employment.

Aiding and Abetting

While the complaint alleges knowledge (Complaint Para. 90), it does not allege substantial assistance (another required element of aiding and abetting), other than the legal conclusion contained in Paragraph 91 of the Complaint.

Accounting

Plaintiff does not establish a relationship between the parties giving rise to a duty to provide an accounting.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR MARIA FERGUSON

Tentative Ruling:

GRANT